

Telecommunications infrastructure policy.

Maharashtra government

Department of General Administration

Governance Decree No.: Matanshan065/pr.c.9/2022/se4/39

Ministry, Mumbai - 400 032,

Date: 04th of November, 2022.

Governance Decree No. Matansant065/pr.kr.1/2018, dated: 17.02.2018.

State Telecommunications Policy Governance Decisions as per the Telecommunications Policy of the Union Government

In accordance with the provisions of Regulation (EC) No. 65/2018, Dec. 17.02.2018, optical fiber hard licence and

Permits for the construction of mobile towers are being processed.

The Directorate of Information Technology shall be designated as the sole liaison office under the Establishment Policy.

Subsidy Policy of the Union Government on 15.11.2016 Right to the Indian Telegraph Line

The rules of 2016 have been complied with.

There is an administrative fee of Rs.1000/- per See per kilometre to be levied.

So, for the permission to build the mobile tower, Rs.10,000/- per mobile tower administration.

The fee has been fixed. Institutions have given government offices 2 Mbps capacity.

We need to provide bandwidth.

Now the Government of India has notified the Gazette No. dated 17.08.2022.

751:6358 The Indian Telegraph Right of Way Rules, 2016 has been amended.

Building the infrastructure needed for Telecommunications 59 Technologies in a fast and easy manner

The Government of India has reformed the Indian Telegraph Right of Way.

In line with the reforms made in the Rules, 2016, it is necessary to reform the state telecommunications policy.

The Government of India has notified the Government of India on 17.08.2022 by Gazette No. 951:635 (8).

Telecommunications policy of the State as per amendments to the Indian Telegraph Right of Way Rules, 2016

The matter of consistency was in the hands of the government.

Government decision:

[illegible]

[illegible]

If any provision is opposed to any future amendment to the Indian Telegraph Right-of-Way Rules, the provisions of the policy will be repealed from the date of notification by the Department of Telecommunications.

3. Empowered Authority: Empowered as defined in the Indian Telegraph Right of Way Rules

The authority.

4. Coordination Officer: Uninterrupted Implementation of State Telecommunications Infrastructure Policy

Each competent authority shall appoint a Coordination Officer to ensure.

Application method: New Applications for Telecommunications Infrastructure and Installation of 5G Infrastructures will be submitted by GX through the GitiDak Communications Portal (atishaktisanchar.gov.in).

6. Regularization: Applications for regularization of existing telecommunications infrastructure will be made on the Telecommunications Portal and licensing proceedings will be conducted in accordance with the Telecommunications Policy. If the application is found to be acceptable under the Telecommunications Policy, the fees applicable to the new application will be applied from the date of its regularization. For the intermediate period from the date of establishment of the infrastructure to the date of regularization/approval, the fees will be charged as determined by the competent authority.

7. Renewal: Applications for renewal will be made through the Telecommunications Portal and will be processed in accordance with the guidelines issued by the relevant departments from time to time. Although the original application will be permitted at old rates, the renewal will be permitted at new rates.

9. Deemed Approval: The Deemed Approval for the construction of Telecom Infrastructure will be provided for under the Indian Telegraph Right of Way rules.

10. Validity of permit: In the case of mobile towers, validity of permit is determined by the installation of the tower.

It will last for five years from the date of issue.

The validity of the licence is 15 years or the period of validity of the licence holder, whichever is less.

It will remain the same.

11. Fees: Under the Indian Telegraph Right-of-Way Regulations, only Administrative Fees, Recharging Fees and Repayment Fees will apply. No fees will be charged other than those specified in the Indian Telegraph Right-of-Way Regulations. Application will be processed at the existing rates or at the maximum rates specified in the Indian Telegraph Right-of-Way Regulations, whichever is less.

Payment of the fees will be made only through the General Communications Portal and the fees will be transferred to the competent Authorities issuing the Permits.

12. Discount / Discount: Projects to lay optical fiber under BharatNet Project and State

Government and Union Government projects will be discounted in administrative fees.

13. Exceptions and deviations: The State Broadband Committee shall decide on the needs of the authorities or telecommunications service providers and infrastructure developers that are different or exceptional from this Order.

14. Use of Street Furniture for 5G Services: Notice No. GSR: 6358 dated 17th August 2022

Use of street furniture to set up 5G telecommunications services under the provisions of the Act.

Changes to the Indian Telegraph Right of Way Rules from time to time will apply.

59 Implementation of Task Committee (Task oR) policy and supporting recommendations

Production and issuance will be handled.

15. Local authorities, offices, corporations and civil local governments under the relevant departments shall be required to issue documents, procedures and fees/customs to be submitted along with the application for permits for the construction of mobile towers, 5G infrastructure and installation of optical fibres in accordance with the Indian Telegraph Right of Way Regulations, in order to issue relevant guidelines to the relevant departments, Departments of Urban Development, Public Works, Industry, Energy and other departments.

(b) Telecom Tower Policy :-

1. The provisions of the Indian Telegraph Right of Way Regulations as well as the Guidelines of the Government of India dated 1.8.2013 shall apply to mobile towers to be erected on private buildings and grounds. Architects and telecommunications service providers and infrastructure building bodies shall certify that such installation will not adversely affect the provisions of the Development Control Regulations (DCR) relating to Fire Safety, Parks and Movement of Persons. Architects and telecommunications service providers and infrastructure building bodies shall certify that such installation will not adversely affect the provisions of the Development Control Regulations (DCR) relating to fire safety, parks and movement of persons.

The competent authority shall be entitled to give a reasoned notice after consultation with the State Department of Telecommunications (DoT) authorities regarding any telecommunications infrastructure found to be in violation of the prescribed emission limit. If found to be faulty, they shall be eligible for criminal prosecution by the competent authority in certain cases.

A competent authority can decide on a wide range of penalties such as refusal to build infrastructure etc.

If, for any reason other than Electromagnetic Field (EMF) Yew, the Licensee is deemed to have done so by SAI, the Licensee shall be handled by issuing a notice to the Licensee. The period for responding to the notice shall not be less than 7 working days. If the Licensee is not satisfied with the Licensee's response, the Licensee shall be given the opportunity to present his or her case before the District Telecommunications Committee.

3. Various charges will be levied in accordance with the Government of India's Telegraph Rules, Amendment 2022, subject to periodic amendments made by the Government of India. The Department of Urban Development, Department of Rural Development and other authorities such as Public Works Department, Maharashtra State Road Development Corporation, Maharashtra Industrial Development Corporation etc. will notify their charges subject to the limits set by the Indian Telegraph Right of Way Rules.

(a) Right of way policy:-

1. This policy applies to both ground and underground disposal of optical fibres.

They will be valid for cable.

2. The competent authority may suggest alternative ways to set up a network. The competent authority may make appropriate changes to the route and/or method of restoration. The change of title will be signed jointly by the competent authority and the licensor.

3. An indicative action plan for laying of optical fiber cables for reference to the competent authorities.

It will have to be made available on the state portal at least 6 months in advance.

4. According to the Government of India's Telegraph Rules, Amendments 2022, periodically implemented by the Government of India.

Various zones will be charged subject to the amendments.

The competent authorities shall decide on charges subject to the limits laid down in the Act.

(d) Online portal - Telecommunications

The State Portal for Mobile Tower Building Permits and Route Permits for Telecommunications Infrastructure has been integrated with the Union Government's Dynamic Communications Portal to track the current status of pending applications for Mobile Tower Building Permits and Route Permits in the State.

All competent authorities in the state are being made to use the Highway Portal to process applications for permits and rights of way for the construction of Mobile Tower. The portal of any authority with its own portal for permits and rights of way for the construction of Mobile Tower will be linked to the Highway Portal.

All complaints related to Telecom Infrastructure Right of Way Permits will be made and tracked only on this system. 3) Dispute resolution:-

Subject to these Rules, any dispute arising between Licensee and Competent Authority may be appealed to the District Level Telecommunications Committee for resolution. The appeal may be made to the State Level Broadband Committee, which shall be the final appellate authority for dispute resolution. The period of dispute resolution at District Level shall not exceed 30 days from receipt of complaint, and the period of resolution within the State Broadband Committee shall not exceed 90 days from date of appeal.

3. As approved by the Cabinet meeting dated October 20, 2022,

Government decision is being issued.

The decision has been made available on the Government of Maharashtra's website, www.maharashtra.gov.in, code 202211041809363311.

By order and name of the Governor of Maharashtra

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(So. AT. Bagul) with Secretary (Aid), Government of Maharashtra

A copy,

1. Ma. Principal Secretary to the Governor.

2. Upper Chief Secretary to the Chief Minister, Ministry, Mumbai -400 032.

Secretary to the Deputy Chief Minister, Ministry, Mumbai-400 032.

4. M. Opposition Leader, Assembly/Legislative Council, Maharashtra Legislative Assembly Secretariat, Mumbai.

5. Ma. Chief Secretary, Ministry, Mumbai.

6. All upper Chief Secretary / Principal Secretary / Secretary, Ministry departments.

7. All sectoral agencies.

8. Commissioner, Municipality (Svi.

9. All the district governors.

10. All CEOs, District Council.

11. All the headmasters, municipalities, city councils, city panchayat.

12. Selective disorder.

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